Annexure – 4

ANDHRA PRADESH POWER GENERATION CORPORATION LIMITED

Phone No._____ Fax No. _____

'Instructions to Bidders'.

Due date and time of submission of bids : ---------- / ------- **hrs.**
Due date and time of opening of Bids : ---------- / --------**hrs.**

The instructions given below must be read very carefully, as failure in compliance with any of these may render the offer liable for rejection. If a bidder has any doubt about the meaning of any stipulation herein, General Purchase Condition, specification of materials or any other enclosed document, he should immediately obtain the clarification/ information in writing from the executive who has issued these documents/ Head of Materials Management Department.

1. **Earnest Money Deposit (EMD)**

1.1. Offers must accompany EMD of requisite amount as specified in tender enquiry failing which offer shall be liable for rejection.
EMD can be furnished by way of DD/Pay Order/Banker's cheque /Bank Guarantee

1.2. Submission of EMD in any other form shall not be considered and shall be treated as disqualification.

1.3. The EMD shall be forfeited, if

i) Bidder withdraws the bid before expiry of its validity.
ii) Successful bidder does not accept the order/LOI or fails to enter into a contract within validity period of offer.
iii) Successful bidder fails to furnish Security Deposit within 30 days from the date of issue of P.O./ LOI
iv) The offer is disqualified for the reasons outlined in clause 2.6.

1.4. Permanent EMD:

The bidder may deposit with APGENCO, the permanent fixed deposit of Rs. 5,00,000/- (Rupees Five Lakhs only) as EMD in the form of DD/Pay order/ Banker's cheque. In case of BG, it shall be valid for a period of three years constituting the said sum as security for due compliance with the obligations undertaken in the offer submitted by the bidder. No interest will be payable on such amount. Such bidder shall be entitled to have them considered without payment of EMD with each tender separately; they need only refer to **the registration certificate No.** on the sealed envelope and also furnish a copy of certificate along with offer.

1.5. The fact of having enclosed the EMD, in requisite forms as indicated in 1.1, or bidder holding permanent EMD (1.4), shall clearly be superscribed on the sealed envelope. Failing which their offer may not be opened and returned back to them unopened without any consideration whatsoever.

1.6. Cases where the EMD is superscribed on the cover but EMD is not found within or found insufficient, shall run the risk of serious action, as felt appropriate by the Corporation.

1.7. The EMD of unsuccessful bidders shall be returned to them, as soon as purchase decision against the tender is taken. EMD of un-successful bidder shall be returned after issue of LOI/PO.

2. **Due date and time and submission of offers**:
Offers in **duplicate** and complete in all respects (**preferably typed**) shall be sent in sealed envelope and preferably by Registered Post/ Speed Post, well in time so as to reach us before bid due date and time. Offers sent through courier/personally brought by your representative, shall not be accepted**, if presented after due date and time of submission of bids.**

2.1. In exceptional circumstances, under conventional mode of tendering**,** you may send the offer by **FAX/scanned copy by email (email ID……)** with all terms and conditions, which shall be considered subject to fulfillment of following conditions: (NOT APPLICABLE for e-Procurement)

i) Fax offers are received in time before scheduled bid opening date and time.
ii) Fax offer indicate basic and essential features of the tender
iii) They are followed by regular offers as confirmatory offers which have been sent by Registered Post/ Speed Post, at least one day before the scheduled date of opening and received within reasonable time.
iv) The confirmatory offers fully conform in all respects to the offers furnished through fax.
v) The confirmatory hard copy must be received with in **Six** working days only.

2.2. The sealed cover as well as outer envelope shall be superscribed with Enquiry No. Due Date & Time of Submission, Details of EMD (Mode of remittance, Exemption of EMD with details, Permanent EMD (PEMD) indicating Certificate No.) and validity failing which the offer may be rejected.

2.3. The bidders who have been addressed by tender enquiry, or who had purchased the bid documents should only quote.

i) If the tender enquiry (single/ limited) is passed on to a distributor/ dealer or to associate/ sister organization by the vendor, to whom the enquiry was sent originally, they shall authorize them through a proper letter (Proforma enclosed) a copy of which shall be enclosed with the bid. The envelope containing the bid must be superscribed; stating that letter of authority is enclosed with the bid.

A copy of such letter shall preferably, be submitted directly before the bid opening. **In absence of such authority letter and also superscription on the envelope, the bid shall be treated as unsolicited and shall run the risk of not being opened.**
Similarly change in the name of the company/address viz.- a- viz. what has been indicated in tender enquiry must be reported in advance, supported by relevant documents and superscription on the envelope that supporting details are inside the **envelope failing which the offer may be treated as invalid.**

The time of actual receipt in the office will only count for acceptance of the offer. The date of tender, date stamp of Post Office or date stamp of any other officer will not count. APGENCO shall not be responsible for any postal or any other transit delays.

2.4. Post tender rebates or deviation in quoted prices and/ or conditions or any such offers which will give a benefit to the bidder over others **will not only be rejected outright but also the original offer itself will get disqualified on this account, and bidder's EMD shall be forfeited.**

2.5. The quoted prices must be written in both figures and words in capital letters. Alterations, if any, shall be made clearly by crossing the whole-entered rate and bidder with his full signature and rubber stamp should attest such correction. **There shall not be any overwriting under any circumstances, as such offers are liable for rejection.** In case of any discrepancy between figures and words**, the rates in words shall be considered for the purpose of evaluation.**

2.6. Bidders may note that due date and time of opening the bids shall strictly be adhered to and accordingly, if they wish to witness the bid opening (only in case of Open Tender), they should bring necessary authorization letter from the organization. However, due to declaration of unexpected holiday or any unforeseen circumstances**, bids are not opened on due date, the same shall be opened on next working day at the same time.**

2.7. Standard printed conditions attached to the tender will not be accepted. Only those mentioned in the body of the offer will be considered.

2.8. In case of non- submission of offer, it shall be appreciated if the vendor sends a regret letter and returns all drawings etc., if any, furnished to them with tender enquiry. **The envelope shall be superscribed ' Regret letter inside'.**

2.9. The bidder shall certify that the quoted rates are as applicable to Government Dept./ Public Sector Undertaking and in support of this they shall furnish copies of Purchase Orders received from these organizations.

3. Validity of offers:

The offers shall be valid for a **period of 120 days from the date of opening of bids**. The period of validity cannot be counted from any other date other than the date of opening the bids.

During this period bidder shall not be permitted to withdraw or vary their offers, once made and if they do so, **the EMD shall be forfeited.**

4. Income Tax PAN:

The bidder shall submit alongwith their offers, the proof of Income Tax PAN, otherwise **their offers shall be liable to be rejected.**

5. Past Experience:

The list of customers, to whom the bidder had supplied identical materials in the past along with P.O. details and performance report, if any, shall be furnished

6. Acceptance of APGENCO Payment Terms:

The standard payment terms shall be **100% payment with in 30days after receipt and acceptance of material**

7. Price Basis

Kindly quote F.O.R. destination prices and despatch of materials through our authorized transporter. However, if the quoted rates are ex-works or F.O.R. Station of Despatch. Loading @ 2% towards Packing and Forwarding and 3% towards freight charges shall be done. However, for F.O.R. Destination or F.O.R. Station of Dispatch prices, break- up of Packing and Forwarding and Freight component shall be furnished as Excise Duty and Sales Tax shall be payable on Ex-works price only and shall not be payable on freight charges.

8. Transit Insurance

Bidder shall quote FOR Destination prices inclusive of transit insurance charges. However, if the price is of Ex-works or Station of Dispatch, loading shall be done **@ 1% on (Basic price + P&F +ED+ST)** towards transit insurance by the Corporation.

9. Taxes and duties:

Kindly indicate clearly as to whether the offered prices are inclusive or exclusive of Sales Tax. The rate and nature of Sales Tax applicable shall be shown separately. Sales Tax shall be paid to the seller at the rate which it is liable to be assessed/ actually assessed on the date of supply, provided the transaction of sale is liable to Sales Tax. In case the bidder stipulates Excise Duty extra as applicable at the time of despatch and specifies the present rate of Excise Duty (in numeric percentage or NIL), the offer shall be evaluated considering rate of ED for the product as per Excise Tariff of Govt. of India or as evident from bids received from other bidder. However, liability of APGENCO shall be restricted to actual ED paid at the time of despatch subject to production of Excise Gate Pass or Excise Invoices. In case the bidder quotes with 'fixed rate' of ED or specify ED as NIL/inclusive, 'the offer shall be evaluated accordingly and payment shall also be restricted accordingly.

This will be subject to submission of Excise Invoice copy for having actually paid the Excise Duty or otherwise but claim for any upward revision will not be accepted at a later stage. Similarly if variable excise duty is payable, evaluation shall be done on full/maximum excise duty payable for the product but payment of ED to the supplier against the order, if placed, shall be actual amount paid subject to furnishing documentary proof (excise Gate Pass or Excise Invoice)

10. Cost Compensation for Deviation:

Deviations specifically declared by the bidders in respective Deviation Schedules of Bid Proposal Sheets only will be taken into account for the purpose of evaluation. The bidders are required to declare the prices for the withdrawal of the deviations declared by them in the Deviation Schedules. Such prices declared by the bidders for the withdrawal of the deviations in the Deviation Schedule shall be added to the bid prices to compensate for these deviations. In case prices for the withdrawal of deviations not furnished by the bidder, the owner shall convert such deviations into a Rupee value and add to the bid price to compensate for these. In determining the Rupee Value of the deviations, the owner will use parameters consistent with those specified in the specifications and documents and/ or other information as necessary and available with APGENCO. In case the bidder refuses to withdraw the deviations at the cost of withdrawal indicated by the bidder in the deviation schedule, the EMD of bidder shall be forfeited. Bidder may note that deviation variations and additional conditions etc. found elsewhere in the bid other than those stated in the Deviation schedules, save those pertaining to any rebates, shall not be given effect to in evaluation and it will be assumed that the bidder complies with all the conditions of Bidding Documents. In case bidder refuses to withdraw, without any cost to APGENCO, those deviations, which the bidder did not state in the Deviation Schedules, the EMD of the bidder may be forfeited.

11. Offers should strictly be in conformity with specifications/ drawings/ samples as stipulated in the enquiry. In case no deviations are indicated, it shall be taken for granted that item (s) has/ have been offered strictly as per the requirements given in the enquiry.

12 Delivery:-

12.1 Delivery Schedule

Offered delivery period shall be based on delivery schedule indicated in the enquiry. In case of any deviation, bidder shall offer his best, realistic and firm delivery, which shall be specific and guaranteed. Delivery period shall be reckoned from the date of LOI/P.O. whichever is the first intimation of acceptance of bidder's offer. Final date of delivery shall be evidenced by date of dispatch of materials as per transporter's Lorry Receipt/ Goods Receipt/Railway Receipt/Permanent Way Bill/Advance Way Bill. In case stage inspection or pre- dispatch inspection is involved, the bidder shall take into account 15 days notice to APGENCO to depute Inspection Engineer. In view of this, delivery time shall be inclusive of time taken for inspection. For delivery beyond contractual delivery period, provisions of 'General Purchase Conditions' shall apply.

12.2. Early Delivery:

It shall be noted that if an order is placed on higher bidder, in preference to lowest acceptable offer, in consideration of an earlier delivery, the bidder shall be liable to the Corporation, the difference between the ordered rate (s) and the rate (s) quoted by the lowest acceptable bidder in case the bidder fails to complete the supply in terms of such order within the date (s) of delivery specified in the tender and incorporated in the order. This is without prejudice to other right under terms of order.

13. It is not binding on APGENCO to accept the lowest or any bid. The Corporation reserves the right to place orders for individual items with different bidders and to revise the quantities at the time of placing the order. The quoted rates, terms and conditions shall apply. The order for the materials may also be split up between different bidders to facilitate quick delivery of critically required materials. APGENCO further reserves the right to accept or reject any/ all bids without assigning any reasons thereof.

14. APGENCO at its sole discretion unilaterally may change the quantities to the extent of ± 20% as indicated in tender enquiry/ NIT. The successful bidder shall be bound to supply these quantities on the same rate and terms and conditions.

15. Bidders are requested to fill in the enclosed proforma for Terms and Conditions and submit the same in duplicate along with their offer.

16. Orders placed against this tender enquiry shall be subject to 'General Purchase Conditions' of APGENCO, a copy of which is enclosed. Bidders are requested to confirm acceptance in toto in their offer.

17. Make/Brand of items offered shall be specified failing which offers are liable to be rejected. It shall be appreciated if one copy of detailed descriptive literature/ pamphlets shall be enclosed along with the offer which may help technical evaluation.

18. In case material offered is ISI marked/tested at any Govt. recognized test house; copies of relevant certificate shall be furnished along with the offer.

19. Test certificate of manufacturer/ Govt. Test House shall be submitted if so stipulated.

20. If the bidder is on DGS&D Rate Contract for item (s) covered in tender enquiry. A copy of the same shall be enclosed along with the offer. SSI /NSIC units shall furnish a copy of registration certificate.

21. Samples shall be submitted with the offer wherever asked for and it is to be noted that they shall only be supplementary to the specification and would not supersede the specification. Samples are relied upon solely to describe attributes that are not quantifiable like colour, luster feel etc. Bidder shall submit samples, freight paid, through register Post Parcel/ Road transport and should ensure that samples reach APGENCO within the stipulated date and time. No cognizance will be given to such samples, which are received after the specified date and time.

22. **Inspection charges:**

Bidder should quote inspection charges inclusive otherwise loading towards inspection charges shall be done @ 3%. Loading shall be done on (Basic Price + P&F+ ED+ST).